

**BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION,
PUNE
CC/441/2025**

Sunita Deshpande

... COMPLAINANT

VERSUS

Sanchay Life Insurance Company Limited

... OPPOSITE PARTY

REJOINDER TO THE WRITTEN VERSION

1. The Complainant denies the contentions in paragraphs 4 and 5 of the Written Version and reiterates the complaint.
2. The Opposite Party's own Investigator's Report is internally inconsistent, recording the alleged diagnosis date as 14.02.2021 in the Repudiation Letter but as 24.02.2021 in the body of the Report itself, undermining the reliability of the repudiation ground.
3. A blank field in a proposal form cannot, without more, amount to suppression of a material fact, particularly where no diagnosis is shown to have existed as on the date of the proposal.
4. As to paragraph 9 of the Written Version, the doctrine of utmost good faith does not dispense with the requirement that the fact allegedly suppressed must be shown to have actually existed and to have been within the proposer's knowledge; an unanswered field, without more, establishes neither.
5. The Complainant has since obtained and files herewith a written reply dated 15.07.2025 from Sassoon General Hospital's records department, confirming that its OPD register does not show any entry for the Life Assured on either 14.02.2021 (as stated in the Repudiation Letter) or 24.02.2021 (as stated in the Investigator's Report), directly contradicting the very basis of the repudiation.
6. The Opposite Party's own Underwriting File Note dated 25.04.2022 (Annexure R-2 to the Written Version) records that the blank field was noticed at the time of underwriting itself and the proposal was nonetheless accepted without query, and the Opposite Party cannot now be permitted to treat the very same blank, four years later and only upon a claim being made, as a suppression sufficient to defeat the claim.
7. In the premises, the repudiation is unsustainable both in fact and in law, and the Complainant reiterates the prayer made in the complaint.

VERIFICATION

I, the Complainant, verify that the contents of this Rejoinder are true.

Verified at Pune on this the 15th day of October, 2025.

Complainant
(Sunita Deshpande)

Ms. Priya Kulkarni, Advocate for the Complainant
Enrolment No. MAH/3897/2016